

LAW & MOTION CALENDAR
TENTATIVE RULINGS

July 24, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Calderon vs. Freeman Expositions, LLC 2024-01448303	Plaintiff's Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to September 4, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before August 25, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. The off-the-clock work claim is principally based on an allegation that Defendant required all employees to undergo pre-shift, off-the-clock COVID screenings and security checks. What did the evidence show? Were such screenings required of all employees pre-shift while clocked out? If so, how would individualized evidence of liability affect class certification? 2. The reimbursement claim is based in part on buying everyday office supplies such as staplers and markers. Did Defendant really require employees to purchase everyday office supplies without reimbursement rather than just purchasing those supplies itself?

		3. The reimbursement claim is also based on personal vehicle use. What personal vehicle use was required of unionized Teamsters? 4. Does the UCL claim have any independent value, or does it simply extend the limitations period? 5. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 6. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 7. Because Plaintiff has submitted a declaration in support of his requested enhancement payment, she need not submit one at final approval. 8. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout. As to the Notice: 1. Please omit the proposed objection form. The notice should include opt-out and workweek dispute forms, but not an objection form. 2. Is notice required in any languages other than English and Spanish? 3. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 4. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
2	Rodriguez Clavel vs. Malcolm Healthcare, Inc. 2024-01449009	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement is GRANTED. The motion for final approval shall be heard on December 18, 2026 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, includes the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.

3	South vs. Hanson 2025-01473729	Plaintiff's Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to September 24, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 14, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. As to the Settlement: 1. The definition of “Class” excludes putative class members who signed <i>Pick Up Stix</i> releases. As a result, there are 23 total members of the Class. The “Aggrieved Employees” are defined as “those members of the Class” who worked during the PAGA period. As defined, this limits the “Aggrieved Employees” to the non-releasing putative class members (since releasing putative class members are excluded from the class). However, there are 41 “Aggrieved Employees.” Are the “Aggrieved Employees” meant to include <i>all</i> putative class members during the PAGA period, both those who released their claims and those who didn’t? 2. In section 8 of the agreement, the parties estimate there were 606 weddings worked by artists and leads during the class period. However, counsel’s declaration repeatedly states that Plaintiff contends there were 3,115 weddings worked, while Defendants contend there were 1,000. Which of these three figures is correct? Why are the numbers discussed in valuation so much higher than the estimate in the agreement? 3. Section 9 of the agreement gives Plaintiff the right to demand an increase to the GSA if the actual number of weddings worked is more than 10% greater than Defendants’ estimate. By Defendants’ own estimate of 1,000, isn’t this already true? Has Plaintiff demanded an increase in the GSA, and have Defendants agreed to such an increase? If not, why not, and how does Plaintiff plan to proceed? 4. Is there a colorable argument that there are too few class members to justify class treatment? 5. Plaintiff’s counsel testifies that administrative employees worked in radically different circumstances from artists and leads. Is Plaintiff, an artist, typical of the administrative employees she seeks to represent? 6. Insofar as employer willfulness is a factor in wage statement and waiting time claims, what does published case law say about how tip withholding claims bear on a willfulness analysis? Conversion of tips suggests a higher level of intent than sometimes-technical meal break violations, for example.
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		7. Does the UCL claim have any independent value, or does it simply extend the limitations period? 8. The definition of “Released Claims” at § 5.2 includes “all claims that arise from the claims and legal theories and primary rights associated with the claims alleged in the Operative Complaint, <i>amended complaints</i>, and the PAGA Notice.” (Emphasis added.) Have any amended complaints been filed in this matter? 9. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 10. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice.
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11.

Because Plaintiff has submitted a declaration in support of her requested enhancement payment, she need not submit one at final approval.

12.

At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout.

As to the Notice:

1.

On page 3 of the notice, please delete the description of the mediator as “experienced, neutral” and the agreement as “lengthy.” This is a court-ordered notice, so these descriptions could be construed as the Court’s official views.

2.

Please include opt-out and workweek or wedding dispute forms (but not an objection form) with the notice.

3.

Is notice required in any languages other than English?

4.

If any changes are made to the settlement agreement, please make corresponding changes to the notice.

5.

The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.

		4. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$7,500, per the parties’ PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before February 28, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary. Please submit a revised proposed order for the Court’s signature that conforms to the foregoing.
6	Her vs. Avon Protection Systems, Inc. 2024-01392475	Plaintiff's Motion for Preliminary Approval The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement is GRANTED. The motion for final approval shall be heard on December 18, 2026 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, includes the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.
7	Gallegos vs. MAPS SERVICES INC., a California corporation; 2021-01216978	Plaintiff's Motion for Order Approving Paga Settlement CONTINUED TO 8/14/2026
8	Fitwi vs. MK Phoenix Airport LLC 2025-01504819	Plaintiff's Motion to Compel Answers to Special Interrogatories Plaintiff Ahmed Fitwi’s unopposed motion to compel responses to his first set of special interrogatories issued to Defendant MK Phoenix Airport LLC is GRANTED as set forth below. I. <u>Compelling Responses</u> On February 10, 2026, Plaintiff served a single special interrogatory on Defendant, seeking the identity and contact information of the putative class members. (ROA 48, Ex. A.) As of the date this motion was filed, no response had been provided. (ROA 48, ¶ 6.) As a result, any potential objections are waived by operation of law, and Defendant is ordered to provide a response. However, the information at issue implicates the privacy interests of

		Defendant’s employees. Regardless of whether Defendant has waived its own objections to the discovery, the Court still has an obligation to consider the non-party employees’ privacy. To that end, the parties are ordered to complete a <i>Belaire-West</i> process, and Defendant is to provide its response within 30 days of completion. In the interests of justice, and given Defendant’s complete failure to provide discovery responses, Defendant is ordered to pay the costs of the <i>Belaire-West</i> process. II. <u>Sanctions</u> Plaintiff requests a total of \$3,585 in fees and costs from Defendant. The request is granted in part. Defendant failed to submit to an authorized method of discovery without justification, so sanctions are required. However, the Court finds the fees claimed by Plaintiff excessive for unopposed form motions to compel <i>absent</i> responses (as opposed to a contested, more tailored motion to compel <i>further</i> responses). The Court finds a total of \$3,000 to be appropriate. Defendant is ordered to pay Plaintiff this amount as a sanction by no later than August 24, 2026.
9	Alvarez vs. Albertson's LLC 2025-01486816	Defendant's Motion for Order to Stay Proceedings Defendant Albertson’s LLC moves to stay this case pending resolution of <i>Alvarez v. Albertson’s LLC</i>, C.D.Cal. No. 8:25-cv-00982-SRM-KES (the “Class Action”). The motion is GRANTED. In light of the stay, a status conference will be held on December 21, 2026 at 8:30 a.m. A joint status report shall be filed by December 14, 2026. Defendant’s unopposed request for judicial notice is GRANTED. <u>GROUND'S FOR RULING</u> I. <u>Background</u> This is a PAGA-only action involving the non-exempt distribution, fulfillment, and warehouse center employees of Defendant. On April 1, 2025, Plaintiff filed a Class Action in Orange County Superior Court, where it was assigned case number 25-01471926 and assigned to Judge Melzer in Department CX102. (RJN Ex. 1.) Plaintiff then filed this separate PAGA action on May 30, 2025. (ROA 2.) Plaintiff is represented by the same counsel in both cases. Although this case and the Class Action arise from common underlying facts, Plaintiff failed to file a notice of related cases in this matter as required by CRC 3.300. Defendant removed both the Class Action and this case to federal court. (RJN Ex. 2; ROA 17.) In federal court, Plaintiff moved to remand this case, while Defendant moved to consolidate it with the Class Action. The federal court granted Plaintiff’s motion to remand and dismissed Defendant’s motion to consolidate as moot. (ROA 22.) From the Court’s review of the two complaints, every Labor Code section cited as a PAGA predicate in this action is alleged in the Class Action. Plaintiff

		suggests the putative class (consisting of distribution center employees) is narrower than the aggrieved employee group (consisting of distribution, fulfillment, and warehouse center employees), but it appears to the Court that these are essentially the same group. In any event, Plaintiff never explains the difference between distribution, fulfillment, and warehouse centers. II. <u>Discussion</u> “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (<i>Freiberg v. City of Mission Viejo</i> (1995) 33 Cal.App.4th 1484, 1489.) Defendant argues a stay of this case pending resolution of the Class Action would promote judicial efficiency. The Court agrees. There is a serious risk of conflicting rulings between the two cases. Plaintiff’s standing to sue as a PAGA plaintiff depends on his having suffered at least one of the Labor Code violations complained of. (See <i>Kim v. Reins International California, Inc.</i> (2020) 9 Cal.5th 73.) If this case and the Class Action continue side-by-side, there could be simultaneous holdings by (1) the federal court that Plaintiff suffered none of the Labor Code violations he complains of, so his claims fail on the merits, and (2) this Court that Plaintiff has suffered Labor Code violations and thus has standing to sue under PAGA. To avoid this problem, the better course is to stay the later-filed case (this one) in favor of the earlier-filed case (the Class Action) and see if there is anything left to litigate about Plaintiff’s PAGA standing when the Class Action concludes. Plaintiff contends it is “unanswered whether any federal ruling would have preclusive effect here” (Opp. at p. 12), but a finding that Plaintiff suffered no Labor Code violations in the Class Action would presumably bar PAGA standing in this case. (See <i>Rocha v. U-Haul Co. of California</i> (2023) 88 Cal.App.5th 65, 78-82 (arbitrator’s finding that plaintiffs had not suffered § 1102.5 violation barred PAGA claim predicated on § 1102.5 violations).) Plaintiff contends a stay would “increase the risk that witnesses leave, memories fade, or records become harder to locate” (Opp. at p. 11), so a stay is inappropriate. But any delay in resolving the PAGA claim compared to the class action is Plaintiff’s fault. He chose to file two separate suits predicated on the same Labor Code violations, and he chose not to file a notice of related cases as required by the Rules of Court. Had he amended his class action complaint as a matter of right to add a PAGA claim, the PAGA claim and the class claims would both be pending in a single action in federal court and proceeding on the same track. For these reasons, the Court exercises its discretion to find that a stay of this action pending resolution of the Class Action would accommodate the ends of justice and promote judicial efficiency.
10	Roe 26 A.B. vs. Anaheim Union High School District 2025-01503960	Gizem Gures Motion to Be Relieved as Counsel of Record Motion to Be Relieved as Counsel of Record Motion to Be Relieved as Counsel of Record Slater Slater Schulman LLP moves to be relieved as counsel for Jane Roe 27 M.M., Jane Roe 33 B.G., and John Roe 34 R.P. The motions are DENIED WITHOUT PREJUDICE for the reasons set forth below. Additionally, the clerk is directed to seal the papers filed at the following

		entries in the register of actions: ROA 32, 34, 36, 38, 39, 43, 44, 48, and 49. <u>GROUND FOR RULING</u> CRC 3.1362(c) requires that a motion to be relieved as counsel be supported by a declaration on Judicial Council form MC-052, “Declaration in Support of Attorney’s Motion to Be Relieved as Counsel—Civil.” Counsel’s declarations were not made on the Judicial Council form. If the declarations contained all information required by the Rules of Court, the Court would likely overlook this issue. However, the declarations contain no proof that the moving papers were served on the clients as required by CRC 3.1362(d), and the proofs of service attached to the moving papers only show service on AUHSD. Accordingly, because there is no proof the moving papers were served on the clients, the motions are denied without prejudice. The Court expects that any refiled motions will be properly supported by declarations on form MC-052 that include all information required by the Rules of Court. In this regard, the Court notes that CRC 3.1362(c) provides the declaration shall state the grounds for withdrawal “without compromising the confidentiality of the attorney-client relationship.” The declarations in support of the current motions include letters from counsel to the clients that are presumably privileged communications. If counsel believes it is necessary to reveal privileged or confidential information to the Court, the proper course of action is to request an in camera hearing, not to file privileged communications in the public record. (See <i>Manfredi & Levine v. Superior Court</i> (1998) 66 Cal.App.4th 1128, 1136-1137.) Finally, although Plaintiffs have filed suit pseudonymously, the current motions and proposed orders include the clients’ unredacted addresses, and the current supporting declarations include the clients’ unredacted names. In the interest of preserving the clients’ privacy, the clerk is directed to seal the current moving papers. The Court orders that any refiled moving papers redact the clients’ names and addresses, and that unredacted copies be lodged with the Court. The Court finds that the clients’ legitimate privacy concerns outweigh the public interest in motions to be relieved as counsel, that these concerns will be prejudiced if their names and addresses are filed in the public record, that redaction of their names and addresses is an appropriately narrow measure to protect the clients’ interests, and that no less restrictive means exist to protect the clients’ interests. (See CRC 2.550(d).) Accordingly, no further order of the Court is needed for counsel to refile these motions with the redactions described above, along with the lodging of unredacted copies.
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